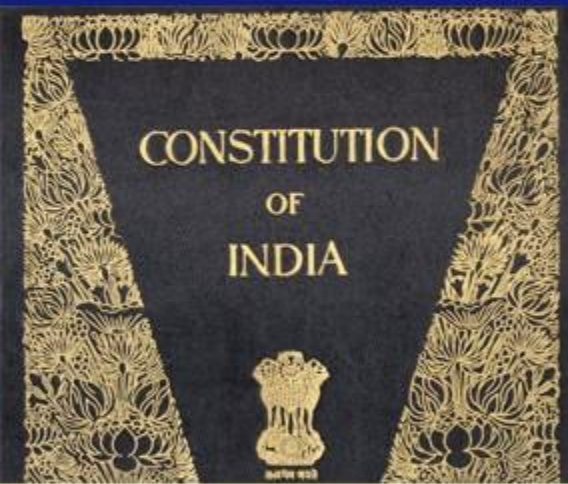


INDIAN POLITY



MODULE - 35

CONTEMPORARY ISSUES

- ART. 21 & RIGHT TO DIE

ARTICLE 21

PROTECTION OF LIFE AND PERSONAL LIBERTY

WHY IN NEWS?

The Supreme Court has recently given judgement on Passive Euthanasia and the Right to Die.

PASSIVE EUTHANASIA

This is the mode of ending life in which physician/doctor is given an option not to prescribe death for the hopelessly ill patient or ending the life by deliberately withholding of drugs or other life sustaining treatments.

ACTIVE EUTHANASIA

Active euthanasia is when death is brought about by an act - for example when a person is killed by being given an overdose of pain-killers.

Passive Euthanasia is thought of as less bad to that of Active Euthanasia, but some people think Active Euthanasia is morally better.

ARTICLE 21

PROTECTION OF LIFE AND PERSONAL LIBERTY

WHAT IS EUTHANASIA?



- 1 Euthanasia, also known as **assisted suicide**, and more loosely termed **mercy killing**, means to take a deliberate action with the expressed intention of ending a life to relieve intractable (persistent, unstoppable) suffering.
- 2 In active euthanasia a person directly and deliberately causes the patient's death.
- 3 In passive euthanasia they don't directly take the patient's life, they just allow them to die.
- 4 India recently witnessed a debate on whether right to die is a part of right to life under Article 21.

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PROTECTION OF LIFE AND PERSONAL LIBERTY

MORE ABOUT THE JUDGEMENT

- 1 The SC bench upheld that the fundamental **right to life and dignity** includes **right to refuse treatment and die with dignity** because the fundamental right to a "meaningful existence" includes a person's choice to die without suffering (including terminally ill).
- 2 The judgment includes **specific guidelines** to test the validity of a living will, by whom it should be certified, when and how it should come into effect, etc.
- 3 The guidelines also cover a situation **where there is no living will and how to approach a plea** for passive euthanasia.
- 4 A person need not give any reasons nor is he answerable to any authority on why he should write an advanced directive.
- 5 But the judge held that active euthanasia is unlawful.

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PROTECTION OF LIFE AND PERSONAL LIBERTY

MEANING OF LIVING WILLS OR ADVANCE DIRECTIVES

1 It is the written document, when a person says, what type of medical treatment they would like, if they become so ill and certain to die and are unable to communicate their wishes about their treatment.

2 It is also known as advance directive. It is a legal document.

3 Living wills and advance directives comes into picture, only when some one faces life threatening condition and unable to communicate desire for treatment.



Many countries US, Ireland and Germany to name a few, have passed laws allowing advanced care directives.

ARTICLE 21

PROTECTION OF LIFE AND PERSONAL LIBERTY

MEANING OF LIVING WILLS OR ADVANCE DIRECTIVES

- 4 A 'living will' is a concept where a patient can give **consent that allows withdrawal of life support** systems if the individual is reduced to **a permanent vegetative state** with no real chance of survival.



- 5 For example, in case of an unconscious person, who suffers from a terminal illness or a life threatening injury, doctors and hospitals will consult his living will to determine whether or not the patient wants life sustaining treatment such as **assisted breathing, tube feeding** etc.
- 6 It is a type of advance directive that may be used by a person before incapacitation to outline a full range of treatment preferences or, most often, to reject treatment.

ARTICLE 21

PROTECTION OF LIFE AND PERSONAL LIBERTY

BACKGROUND OF THE ISSUE



ARUNA SHANBAUG

- 1 The 196th Law Commission of India report in 2002 advocated passive euthanasia. However, it decided not to make any laws on euthanasia.
- 2 In the **Aruna Shanbaug's case in (2011)**, a major milestone, **the Supreme Court decided to legalise passive euthanasia** by means of withdrawal of life support to patients in a persistent vegetative state (PVS). According to the Court, the decision of the patient must be an informed decision.



KEM HOSPITAL NURSING STAFF PAYING HOMAGE TO ARUNA SHANBAUG

ARTICLE 21

PROTECTION OF LIFE AND PERSONAL LIBERTY

BACKGROUND OF THE ISSUE



- 3 The **Law Commission**, later in its 241st report came out in favour of allowing withdrawal of life support for certain categories of people — like those in **persistent vegetative state (PVS)**, in **irreversible coma**, or of **unsound mind**, who lack the mental capacity to take decisions.
- 4 The Supreme Court guidelines form the law of the land regarding euthanasia, till the time. Active euthanasia is still not legal in the country.
- 5 Recently, the Central government, objected to legalising the concept of 'Living Will' — an advance written directive to physicians for end-of-life medical care.

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PROTECTION OF LIFE AND PERSONAL LIBERTY

SUPREME COURT HISTORICAL VERDICT IN NGO COMMON CAUSE CASE



- Supreme Court upheld passive euthanasia and right to give advance medical directives or Living Wills to smoothen the dying process as part of fundamental right to live with dignity.
- SC said: “The right to life and liberty as envisaged under Article 21 of the Constitution is meaningless unless it encompasses within its sphere individual dignity. With the passage of time, this Court has expanded the spectrum of Article 21 to include within it the right to live with dignity as component of right to life and liberty.”

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PROTECTION OF LIFE AND PERSONAL LIBERTY

SUPREME COURT HISTORICAL VERDICT IN NGO COMMON CAUSE CASE



- The five judge Constitution bench led by Chief Justice Dipak Misra ruled that the Fundamental Right to Life and Dignity under **Article 21 of the Constitution also includes the Right to Die with Dignity.**
- Dignity is lost, if a man is allowed or forced to undergo pain and suffering because of unwarranted medical support.

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PROTECTION OF LIFE AND PERSONAL LIBERTY

WHO CAN MAKE A LIVING WILL?



- 1 An adult with a sound and healthy mind and it should be voluntarily executed based on informed consent.
- 2 It should be expressed in clear and unambiguous terms.
- 3 It should explain circumstances in which treatment should be withheld or withdrawn.
- 4 It should also specify that the Will can be revoked any time.
- 5 Name of the guardian or close relative, who will give the go-ahead will be indicated.

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PROTECTION OF LIFE AND PERSONAL LIBERTY

WHAT IS THE LEGAL PROCEDURE?



- 1 That it shall be attested by two witnesses and preferably counter-signed by a **first class judicial magistrate**.
- 2 The magistrate shall preserve one hard copy and one soft copy each and **forward to the District Court Registry**.
- 3 Copy will be given to a local government official, who shall nominate a custodian for the Will.

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PROTECTION OF LIFE AND PERSONAL LIBERTY

HOW TO DIFFERENTIATE BETWEEN PASSIVE EUTHANASIA FROM SUICIDE AND ACTIVE EUTHANASIA?



- 1 Passive Euthanasia is a mere acceleration of inevitable death.
- 2 Active Euthanasia is unlawful.
- 3 Suicide involves overt acts, which culminates in an unnatural death.
- 4 A valid Living Will facilitates Passive Euthanasia.

The Passive Euthanasia is a right to smoothen the dying process.

ARTICLE 21

PROTECTION OF LIFE AND PERSONAL LIBERTY

HOW TO INFER THE DECISION OF THE SUPREME COURT?



- 1 It is to find the balance in the relationship between life, morality and the experience of dying.
- 2 Accelerating the process of death for reducing the period of suffering constitutes a Right to Live with dignity. It also can be inferred as right of self determination with autonomy.
- 3 Burdening a dying patient with life-prolonging treatment and equipment merely because of medical technology has advanced would be destructive of her dignity. Individual interest has to be given priority over the State interest.

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PROTECTION OF LIFE AND PERSONAL LIBERTY

HOW THE SUPREME COURT HAS DRAWN THE POWER?



- 1 The Court invoked its inherent power under Article 142 of the Constitution to grant legal status to advance directives. The Court's directives will hold good until Parliament enacts legislation on the matter.

WHAT DOES ARTICLE 142 SAY?

Enforcement of decrees and orders of SC: "The SC in the exercise of its jurisdiction may pass such decree or make such order as is necessary for doing complete justice in any case or matter pending before it, and any decree so passed or order so made shall be enforceable throughout the territory of India..."

ARGUMENTS IN FAVOUR OF PASSIVE EUTHANASIA

- 1 Some believe that every patient has a right to choose when to die as they have right to life enshrined in the constitution.
- 2 Proponents believe that euthanasia can be safely regulated by government legislation. Passive euthanasia has already been practised in various cases around the world.
- 3 In case of palliative sedation, widely used across the world, many of the sedatives used carry a risk of shortening a person's lifespan. So, it could be argued that palliative sedation is a type of euthanasia.

ARGUMENTS AGAINST PASSIVE EUTHANASIA

- 1 Alternative treatments are available, such as palliative care and hospices. We do not have to kill the patient to kill the symptoms. Nearly all pain can be relieved.
- 2 There is no 'right to be killed'. Opening the doors to voluntary euthanasia could lead to non-voluntary euthanasia, **by giving doctors the power to decide when a patient's life is not worth living.**
- 3 The assumption that patients should have a **right to die would impose on doctors a duty to kill**, thus restricting the autonomy of the doctor. Also, a **'right to die' for some people might well become a 'duty to die'** by others, particularly those who are vulnerable or dependent upon others.



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PROTECTION OF LIFE AND PERSONAL LIBERTY

MORE ROLE FOR THE DOCTORS



- It places **huge burden** on the treating physician and the hospital.
- The responsibility is to **ascertain the genuineness and the authenticity of the Living Will** of a terminally ill-patient from the judicial magistrate, in whose custody the document is kept.
- Then the doctor should give due weightage to the instructions left by the patient.
- Once the doctor decides that the Living Will needs to be acted upon, then it is to be informed to the guardian or close relative about the medical condition.

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PROTECTION OF LIFE AND PERSONAL LIBERTY

MORE ROLE FOR THE DOCTORS



- Then the physician or the hospital has to **constitute a Medical Board consisting of head of treating department and at least three experts** from various departments with experience in critical care and a standing of twenty years in the profession.
- They have to visit the patient and **release a preliminary opinion, whether to act upon as per the Living Will.**
- In case the Medical Board decides not to follow a Living Will, it can **apply to the District Collector concerned**. In case it supports the Living Will, the doctor or the hospital has to inform the District Collector, who will also form a Medical Board with the Chief District Medical Officer as Chairman for endorsement of the decision.

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